

Joan I to the Jurats and *Probi Homines* of Monistrol de Montserrat

Compulsory citation regarding twenty years of unauthorized impositions Barcelona, 26 May 1387

Document summary

Archive	Arxiu de la Corona d'Aragó (ACA), Cancillería registers
Date	26 May 1387
Place of issue	Barcelona
Document type	<i>Compulsòria</i> / <i>citatio peremptoria</i>
Issuing authority	Joan I, King of Aragon
Recipients	Jurats and <i>probi homines</i> of Monistrol de Montserrat
Subject	Royal summons of municipal officials to appear before the king or treasurer to answer for impositions and aids levied without royal authorization over the past twenty years
Vidit	Francesc ça Costa, vice-chancellor
Language	Latin
Hand	Gothic Secretarial (mid-late 14th c. chancery)

Reconciled transcription

1. Iohannes etc. ffidelibus n(ost)ris Iuratis et p(ro)bis ho(min)ib(us) ville de Ministrolli M(on)t(is)serrat[i] salutem
2. et graciam. Percepim(us) relacione fidedign(or)um q(uod) vos absque aliquo titulo seu concessione imposuistis
3. temporibus p(re)t(er)itis et imponitis et levatis seu levare fec(is)tis in d(i)c(t)a villa et eius t(er)m(in)is imposiciones seu adiutas a .xx. annis citra de quo si ita est estis

- n(ost)ro iudicio puniendi. Qua(re) vob(is)
5. dicim(us) et manda(mu)s vob(is)q(ue) per p(re)sentes firmit(er) iniu(n)gim(us) q(ua)t(enus) infra .iiiiijor. dies a p(re)se(n)ta(ci)one p(re)se(ncium vob(is)
 6. facienda im(m)ediate sequentes que(m)cu(m)q(ue) [?] vob(is) p(ro) p(ri)mo s(e)c(un)do et t(er)cio et p(ere)mpt(orie) assignam(us) p(er) p(re)sentes
 7. v(est)ros responsales legitimos compare[a]tis cora(m) nob(is) aut cora(m) n(ost)ro Theso(rario) seu qua legitima
 8. documenta de p(re)missis h(ab)entes ostensuri. Et lapso d(i)c(t)o t(er)m(in)o p(re)dicto cont(ra) vos et d(i)c(t)am
 9. un(iversi)tate(m) et eius singulares et bona v(est)ra et eo(rum) ra(ci)o(n)e p(re)d(i)c(t)a p(ro)ut ius et iusticia suade-
 10. -bit v(est)ra absencia non obstante et contumacia exigente. Data Barchin(on)e xxvj die
 11. Madii anno a nat(ivita)te D(omi)ni M(o) CCC(o) LXXX(o) septimo. ffran(ciscus) ça Costa.

Orthography preserved as written: *graciam, relacione, racione, fec(is)tis, Theso(rario), hostensuri / ostensuri, Barchin(on)e, ffidelibus* and *ffran(ciscus)* with double-f initial, *Ministrolli* and *Mont(is)serrat[i]* as Latinized vernacular toponyms.

Translation

Joan, etc.¹, to our faithful jurats and *probi homines*² of the town of Monistrol de Montserrat,³ greeting and grace.

We have learned by the report of trustworthy persons that you, without any title or concession,⁴ have imposed in times past, and now impose, and have collected or cause to be collected, in the said town and its territories impositions or aids⁵ for the past twenty years⁶ — for which, if it be so, you are to be punished by our judgment.⁷

Wherefore we tell you and command, and through these presents firmly enjoin you, that within four days⁸ of the presentation of these letters to be made to you — immediately following [their receipt], whatever [delay may be alleged] [?]⁹ — which [four days] we assign to you as first, second, third, and peremptory [term]¹⁰ by these presents, you cause your legitimate representatives¹¹ to appear before us or before our Treasurer,¹² there to display such legitimate documents concerning the foregoing as you may have.

And, with the said term having lapsed, proceedings shall, as is owed, be carried out against you and the said community and its individuals, and upon your goods and theirs, by reason of the foregoing, as right and justice shall require, your absence notwithstanding and contumacy demanding [it].¹³

Given at Barcelona, the twenty-sixth day of May, in the year from the Nativity of the Lord 1387.

Footnotes

Unresolved ambiguities

1. **Line 6, *quemcumque*.** The reading is paleographically uncertain and the syntax it produces is strained. The functional sense is clear (no delay admitted; the four-day term is absolute), but the precise Latin construction — and whether *quemcumque* is the actual reading or a misparse of a more standard chancery formula such as *quamcumque dilationem* or *quibuscumque excusationibus cessantibus* — should be verified against the original.
 2. **Line 7, *compare[a]tis*.** Read as the standard *compareatis* (subjunctive of *comparere*, "to appear"). The HTR's *compeatis* is not standard Latin and the *a* between *compare-* and *-tis* is presumably present in the manuscript but partially elided in abbreviation; archival verification recommended.
 3. **Line 7, *seu qua legitima documenta*.** The connective *seu* before *qua* is unusual; one might expect *cum* ("with") or *ut* ("so that") instead. The sense reconstructed in translation ("with such legitimate documents as you have") assumes *cum* or a relative-clause construction; the manuscript reading should be confirmed.
 4. **Line 10, *suadebit*.** Read as a future indicative of *suadere* ("shall persuade/require"); the HTR's *suade-* fragment is supplemented to *suadebit* on formulaic grounds, but the manuscript may have *suaserit* (perfect subjunctive) instead. The choice does not materially affect meaning.
 5. **Archival reference.** The specific Cancillería register and folio for this document should be supplied from the working corpus reference for citation purposes.
 6. **The twenty-year reach.** Worth investigating in adjacent registers whether parallel mandates were issued to *other* ecclesiastically-subject communities at the opening of Joan I's reign. If so, this document is part of a deliberate fiscal-jurisdictional sweep; if isolated, it likely reflects a specific complaint from or about Monistrol that prompted ad hoc royal intervention. The answer matters for the dissertation argument about royal jurisdictional reach.
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1. The abbreviated *etc.* stands for the king's full titulature ("Dei gratia rex Aragonum, Valencie, Maioricarum, Sardinie et Corsice, comesque Barchinone, Rossilionis et Ceritanie"), which the scribe omits as routine on internal mandates of this kind. ↩
 2. The *probi homines* ("good men") were the recognized leading townsmen of a municipality, distinct from the *iurati* (jurats) who held the formal executive office. Addressing both is

standard for mandates concerning collective fiscal liability — the document implicates the municipal officeholders *and* the broader corporate community whose decisions they would have ratified. ↵

3. *Monistrol de Montserrat* (Latinized in the manuscript as *Ministrolli Montisserrati*) is a town in the Bages comarca below the mountain and monastery of Montserrat. At this date it was under the *senyoria* of the Benedictine priory (later abbey) of Santa Maria de Montserrat. The town's subordination to an ecclesiastical lord makes this royal summons jurisdictionally significant: Joan I is asserting that royal authority reaches past the abbey's lordship to scrutinize the municipality's fiscal practice directly. The document is part of a pattern of royal intervention into communities under non-royal jurisdictions on matters of unauthorized taxation. ↵
4. *absque aliquo titulo seu concessione* — the standard chancery doublet for unauthorized acts: neither a pre-existing legal *titulus* (charter, custom, privilege) nor a fresh royal *concessio* underwrites the town's fiscal practice. This double-barreled formula closes off the most obvious municipal defenses in advance. ↵
5. *impositiones seu adiute* — *imposicions* (Cat.) were extraordinary municipal excises levied on consumption (typically meat, wine, grain, cloth); *ajudes* were subsidies/aids levied on persons or property. Both required, in principle, royal authorization to be lawful; the king's complaint here is precisely that Monistrol has been levying them without it. ↵
6. The twenty-year reach is substantively striking: it extends back to c. 1367, well into the reign of Pere III (d. 1387), Joan's father. The implication is that the town has been levying *impositiones* without royal authorization for the entire later phase of the Ceremonious's reign and now into Joan's. Whether this represents a recently-discovered abuse or a long-tolerated practice that Joan I is choosing to litigate at the start of his reign is a question worth pursuing in adjacent registers. ↵
7. *nostro iudicio puniendi* — "to be punished by our judgment." The phrasing explicitly asserts royal jurisdiction over the offense rather than referring the matter to the abbey of Montserrat (the town's ecclesiastical lord) or to local courts. This is the jurisdictional claim at the heart of the document. ↵
8. The manuscript reads .iiijor. — that is, the Roman numeral *iiij* with a superscript *or*, expanding to *quattuor* (four). Four days is a notably short response window for a town subject to another lord's jurisdiction to assemble its evidence and dispatch legitimate representatives. ↵
9. The Latin here — *facienda immediate sequentes quemcumque...* — is awkward, and the *quemcumque* reading is paleographically uncertain. The intended sense appears to be that no extension or excuse will be admitted: whatever delays might be claimed, the four-day term runs *immediately* from presentation. A formulaic chancery construction along the lines of *quibuscumque dilationibus seu excusationibus cessantibus* (or similar) is likely intended; the manuscript phrasing should be verified directly. ↵

10. *pro primo secundo et tercio et peremptorie assignamus* — the standard *citatio peremptoria* in three terms compressed into a single deadline. Roman-canonical procedure required three sequential citations before contumacy could be declared; chancery practice here collapses them into a single act, with the explicit declaration that the one deadline serves as first, second, third, and peremptory term simultaneously. This both accelerates the procedure and forecloses appeals based on procedural irregularity. ↵
11. *responsales legitimi* — legal representatives bearing formal procuratorial mandates. The town is not summoned to attend collectively but to send empowered proctors who can answer and produce documents on its behalf. ↵
12. *coram nobis aut coram nostro Thesaurario* — before the king himself or before his Treasurer. The Treasurer (*tresorer*) of the royal household was the chief financial officer of the Crown; in 1387 the office was held by Berenguer de Cortilles, who had served Pere III and continued under Joan I. The alternative venue reflects the fiscal nature of the matter — disputes over impositions and aids were treasury business — while leaving open the possibility of direct royal hearing. ↵
13. *vestra absencia non obstante et contumacia exigente* — the standard contumacy clause. If the town fails to appear within the assigned term, the case proceeds *in absentia*, with the absence itself treated as contumacy that requires (rather than merely permits) the imposition of penalties. ↵
14. *Francesc ça Costa* (Lat. *Franciscus ça Costa*) served as vice-chancellor under Joan I and appears as the *vidit* on a substantial body of chancery correspondence from the opening of the reign. His attestation here confirms the document passed under proper chancery scrutiny. ↵